



## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

October 4, 2023

### **POLICE COMMISSIONER'S PENALTY DEPARTURE**

**Re:** CCRB Case No. 202202141 (Incident Date: April 4, 2022) regarding Police Officer Marco Libongco, Tax No. 938858 (DADS No. 2023-28446)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action is warranted in connection with the single allegation that Police Officer Libongco threatened an individual with the use of force.

In this matter, police officers responded to a 911 call from an individual's mother, stating the individual was suicidal. Emergency Medical Technicians, on scene, determined that this individual needed to be removed to the hospital for evaluation. The individual expressed that she did not want to leave the apartment and locked herself in the bathroom. After several minutes, officers on scene were able to convince her to open the door. Nevertheless, the individual refused to leave the bathroom and Police Officer Libongco pointed his Conducted Electrical Weapon (CEW) at the individual as the officers escorted her from the bathroom. CCRB determined this use of the CEW was appropriate, as they exonerated this allegation for threat of force.

When the officers walked the individual out of the apartment to the ambulance, Police Officer Libongco informed the individual that they would lock the door to her apartment and hold onto her keys. The officers did not want the individual to have keys, to use as a weapon to hurt herself or anyone else. However, the individual refused to turn over her keys to the officers after being asked at least twice. As the individual continued to walk toward the exit of the building, Police Officer Libongco grabbed the individual's hand and demanded again that she give the keys

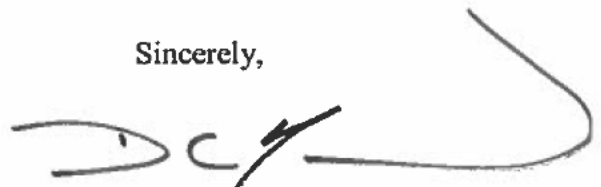
**COURTESY • PROFESSIONALISM • RESPECT**

**Website: <http://nyc.gov/nypd>**

to him. When the individual did not comply, Police Officer Libongco pointed his CEW at her. The individual proceeded to give the keys to another officer. Police Officer Libongco stated he did not intend to use the CEW on the individual at any point and only pointed it at her to gain compliance, and safely remove the keys from her possession.

The Police Commissioner has determined that Police Officer Libongco acted within Department guidelines when he pointed the CEW at the individual in order to gain compliance. This was a de-escalation technique successfully used to gain compliance from an individual who was suicidal and exhibiting unpredictable behavior. Therefore, based on the foregoing, Police Officer Libongco will receive no disciplinary action for the alleged violation of Administrative Guide Procedure No. 304-06 (1) (Prohibited Conduct/Threat of Force).

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office